

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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KARLA PATRICIA LYNN STORIE,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
STEPHEN MAZZARO, Shield # 031071, SERGEANT
MUNOZ, Tax # 934015, and POLICE OFFICERS JOHN
DOES #1-10 (names and number of whom are unknown at
present), and other unidentified members of the New York
City Police Department,

Defendants.
----- X

SUMMONS

Index No.:

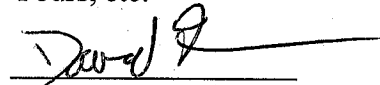
The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 29, 2014

Yours, etc.


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TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER STEPHEN MAZZARO, Shield # 031071
SERGEANT MUNOZ, Tax # 934015

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VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, KARLA PATRICIA LYNN STORIE, by her attorneys, Jacobs & Hazan, LLP,
as and for her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York.

2. This case arises from a July 30, 2011, incident in which members of the New York City Police Department ("NYPD") falsely arrested plaintiff as artist Andy Golub applied paint to her nude body as part of an exhibition in Times Square.

3. Andy Golub is an artist, who uses the nude body as a human canvas, painting models in public spaces to allow his audience to observe the transformation. His work has been well received by art critics and the media. San Francisco Weekly described Golub's body-paintings as "stunning," and recognized, "Doing this in public is part of Golub's process... Painting people in public lets anyone watch the joint creation being made, and it's a more direct way to show his work than, say, photographs in a gallery." Keith Bowers, *Public Nudity: It's Different in New York City (Sort of)*, San Francisco Weekly, Sep. 20, 2011.

4. "Praising Goub's artistic exhibitions, Nathan Burstein, writing for the New York Post, writes that Golub has given "new meaning to the term 'painting nudes,' using his

brushes not to depict named women on a canvas- but painting his vision directly onto their skin.” He elaborates:

To create his unique style, [Golub] typically uses bright colors, beginning by applying a quick coat of paint, then tracing over it in contrasting shades. Spectators sometimes liken the final product to the creatures from “Avatar,” though Golub’s designs are much more ornate.

Nathan Burstein, *Lewd Awakening*, New York Post, August 8, 2011.

5. Use of the human body as his medium provides Golub with unparalleled inspiration. As Golub told the New York Post, “[P]ainting people ... [is] a lot more than painting the form—each person has a personality or energy that you can incorporate into the art.” Id.

6. As to the public nudity aspect of his work, Golub describes his exhibitions as an “interaction” with the public that “makes [people] look at things differently.” Id. “[I]t’s allowing people to see nudity in a nonsexual way.” “It’s about not being ashamed of the body.”

He explains:

It’s a way for [the models] to accept themselves for who they are in their strengths and weaknesses and being comfortable in sharing that with other people, which is difficult. Most or all of the people that get painted have somewhat of a liberating experience... Me and the model connect with each other and we do it in full public view so people can connect with us. In a lot of people’s lives there’s a certain disconnect that is the result of technology and the way we communicate... Ultimately, I believe my art is about human connection.

Felicity Jones, *My Interview with Andy Golub: Artistic Nude or Downright Lewd?*, Young Naturists America website, May 1, 2012, available at <http://nudistnaturistamerica.org/andy-golub-nude-body-painting-artist-interview>.

7. To Golub, full nudity (as opposed to toplessness) has a significant role in conveying his artistic message. Nevertheless, the amount of time Golub’s models are fully-nude during his public exhibitions is extremely short. When doing a full-nudity exhibition, Golub’s model’s typically remove their underwear last, simply to allow Golub to complete the painting. The rapidly-applied paint covers the exposed area in minutes, if not seconds, and, once masked in a blanket of paint, the genital area is no longer discernible.

8. Golub’s art has received international recognition, but the artist is most famous for his live body-painting on New York City streets. He has painted models in front of numerous city landmarks, including Columbus Circle, the Brooklyn Bridge, Tompkins Square Park; the Metropolitan Museum of Art, and the New York Public Library; outside the tents of Fashion Week; at the 2006 Art Expo; and, more than two dozen times, in Times Square. His painted models have also made annual appearances at several New York City parades.

9. Defendant City of New York, acting through its police department and the individually named police officer defendants, attempted to censor Andrew Golub on July 30, 2011 when the individually named defendant police officers arrested plaintiff Karla Patricia Lynn Storie during an exhibition in Times Square.

10. Defendant City of New York, acting through its police department, continued to attempt to censor Andrew Golub after his arrest on July 30, 2011. Despite an agreement subsequently reached between Golub's attorney and the NYPD allowing plaintiff to create his art in public, on August 30, 2011 police officers again disrupted Golub's exhibition by arresting the model he was painting on that date.

11. In the City of New York, the law does not criminalize public nudity when engaged in it for purposes of an exhibition of art. New York Penal Law §§ 245.01 and 245.02, which criminalize public nudity, generally, specifically exempt from criminal liability persons "entertaining or performing in a play, exhibition, show or entertainment." The New York State Legislature has granted local authorities the right to pass local laws to further restrict public nudity, but the City of New York has passed no such laws. Indeed, the City of New York regularly authorizes film companies to engage in nude film shoots in public spaces in the City. Hence, Plaintiffs were arrested for a crime that does not exist.

12. In this action, alleging deprivation of plaintiff's constitution rights, Plaintiff seeks compensatory and punitive damages, an award of costs, interest and attorneys' fees, and such other and such other and further relief as this Court deems just and proper.

PARTIES

13. Plaintiff Karla Patricia Lynn Storie is and was at all times relevant hereto a citizen and resident of the United States.

14. Defendant, POLICE OFFICER STEPHEN MAZZARO, Shield # 031071, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

15. Defendant, POLICE OFFICER STEPHEN MAZZARO, Shield # 031071 is and was at all times relevant herein, assigned to Patrol Boro Manhattan South.

16. POLICE OFFICER STEPHEN MAZZARO, Shield # 031071, is being sued in his individual and official capacities.

17. Defendant, POLICE OFFICER STEPHEN MAZZARO, Shield # 031071, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

18. Defendant, SERGEANT MUNOZ, Tax # 934015, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. Defendant, SERGEANT MUNOZ, Tax # 934015, is and was at all times relevant herein, assigned to Patrol Boro Manhattan South.

20. Defendant, SERGEANT MUNOZ, Tax # 934015, is being sued in his individual and official capacities.

21. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Police Officers John Does #1-10 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

24. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

25. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

26. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

27. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

28. On July 30, 2011 at approximately 8:30 p.m. plaintiff Karla Patricia Lynn Storie was falsely arrested by the individual defendants, without probable cause, in the Times Square pedestrian plaza in the vicinity of 44th Street and Broadway.

29. On the afternoon of July 30, 2011, Andrew Golub arrived at the Times Square pedestrian plaza to prepare for an art exhibition in which models would model for Andrew Golub, and he would paint their nude bodies in the heart of Times Square.

30. At approximately 2:30 p.m. on July 30, 2011, plaintiff Andrew Golub painted plaintiff Karla Patricia Lynn Storie's nude body.

31. Ms. Storie disrobed, removing all clothing except her underwear. Mr. Golub immediately began painting Ms. Storie's undressed body. With big, colorful strokes of his paint brush, Golub quickly clothed Ms. Storie in a vibrant layer of paint, transforming the once-bare body into a dramatic display of colors, shapes, and lines that added new life to his already living medium.

32. After her exposed skin was fully coated with paint, Ms. Storie removed her underwear to allow Mr. Golub to complete his artistic creation. Mr. Golub's quick, large strokes covered the naked area in minutes, if not seconds.

33. Mr. Golub completed painting Ms. Storie, without incident.

34. Mr. Golub painted several additional individuals throughout the day, and NYPD officers, as well as many pedestrians in the area watched Mr. Golub performing his artwork on human canvases.

35. The NYPD officers that watched Mr. Golub perform his artwork on the nude models throughout the day did not order Mr. Golub to stop what he was doing and gave Mr. Golub no indication in any way to Mr. Golub that they believed he or the models were doing anything illegal.

36. In the evening hours of July 30, 2011 Mr. Golub stopped painting models and left the vicinity of Times Square where he painted the models.

37. However, at approximately 8:30 p.m., well after he painted plaintiff, Mr. Golub returned to the area where he had been painting the models and observed the individually named defendant New York City Police Officers speaking to a model. Ultimately the Officers falsely arrested plaintiff.

38. Plaintiff Storie remained in the pedestrian area of Times Square after Mr. Golub painted her and at approximately 8:30 p.m., the individually named defendant police officers suddenly approached Ms. Storie, handcuffed her and placed her under arrest without probable cause.

39. Prior to being handcuffed, Ms. Storie attempted to put her clothing on and in the process her dress was ripped.

40. Mr. Golub approached the individually named police officers that arrested Ms. Storie and advised them that it was legal for her to be painted in the nude. In response, the

individually named defendant police officers made a phone call and Mr. Golub waited for approximately 15-20 minutes while the officer spoke on the phone.

41. Plaintiff Karla Patricia Lynn Storie was transported to a police precinct by the defendants where plaintiff was detained in holding cells, fingerprinted and photographed.

42. Ms. Storie was denied food and water by the officers at the police precinct.

43. Plaintiff was transferred to Manhattan Central Booking at approximately 10:00 a.m. on July 31, 2011.

44. Plaintiff was arraigned on July 31, 2011 at approximately 10:30 p.m. and charged with Public Lewdness (PL 245.00) and Exposure of a Person (PL 245.01).

45. All charges against plaintiff were dismissed on or about April 12, 2012.

46. The police officers lacked probable cause to arrest plaintiff.

47. Plaintiff did not commit any crime, nor did the defendant police officers have probable cause to believe plaintiff committed a crime.

48. The individually named police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable false arrest of plaintiff.

49. The false arrest and false imprisonment of plaintiff by the individually named police officer defendants caused plaintiff to sustain psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's First, Fourth Amendment and Fourteenth Amendment Rights

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The individually named police officer defendants were acting in concert and within the scope of their authority, falsely arrested plaintiff and caused plaintiff to be imprisoned without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States. Additionally, plaintiff's First Amendment rights under the United States Constitution to freedom of speech and expression were violated by defendants when defendants falsely arrested plaintiff, because they were trying to prevent him from expressing his First Amendment rights.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York and under the Fourth Amendment to the United States Constitution. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff were conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

54. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

Failure to Intervene

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The individually named police officer defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

57. The individually named police officer defendants failed to intervene to prevent the unlawful conduct described herein.

58. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

59. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

61. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

62. The City of New York directly caused the constitutional violations suffered by Plaintiff, and is liable for the damages suffered by Plaintiff as a result of the conduct of the defendant officers. The conduct of the defendant officers was a direct consequence of policies and practices of Defendant City of New York.

63. Upon information and belief, at all times relevant to this complaint Defendant City of New York, acting through its police department, had *de facto* policies, practices, customs and usages that condoned and fostered the unconstitutional conduct of the individual defendants and were a direct and proximate cause of the damages and injuries complained of herein.

64. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

65. At all times relevant herein, Defendant City of New York, acting through the NYPD, had *de facto* policies, practices, customs, usages of encouraging and/or tacitly sanctioning the violation of and/or retaliation for an individual's exercise of free expression.

66. More specifically, the City of New York, acting through the NYPD, had a policy and practice of failing to properly train its employees and police officers as to the lawfulness of public exposure engaged in as part of a performance, play or exhibition, thereby allowing the arrest and detention of persons whose conduct was expressly excluded from the statutory prohibition against nudity.

67. The City of New York knew or should have known of the defendant officers' propensity to engage in misconduct of the type alleged herein. Prior to July 30, 2011, the City of New York was aware of numerous complaints of police misconduct involving the false arrest of individuals who engage in public exposure for purposes of an exhibition or art by

members of the NYPD. Despite its knowledge of such incidents of prior misconduct, the City of New York failed to take remedial action.

68. The wrongful policies, practices, customs and/or usages complained of herein demonstrated a deliberate indifference on the part of policymakers of the City of New York to the constitutional rights of persons within the city, and were the direct and proximate cause of the violations of Plaintiff's rights alleged herein.

69. As a result of the foregoing, Plaintiff was deprived of their liberty, subject to great humiliation, and was otherwise damages and injured.

JURY DEMAND

70. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Karla Patricia Lynn Storie e demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
July 29, 2014

By:


STUART E. JACOBS
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TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER STEPHEN MAZZARO, Shield # 031071
SERGEANT MUNOZ, Tax # 934015

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. This Verification is not made by plaintiff because she does not reside in the County that we maintain our offices.

DATED: New York, New York
July 29, 2014



STUART E. JACOBS